THE REPEALING AND AMENDING (SECOND) ACT, 2017

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ARRANGEMENT OF SECTIONS

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SECTIONS

1. Short title.
2. Repeal of certain enactments.
3. Amendment of certain enactments.
4. Savings.

THE FIRST SCHEDULE.

THE SECOND SCHEDULE .

IndiaCode

THE REPEALING AND AMENDING (SECOND) ACT, 2017

ACT NO. 4 OF 2018

[5*th January*, 2018.]

An Act to repeal certain enactments and to amend certain other enactments.

BE it enacted by Parliament in the Sixty-eighth Year of the Republic of India as follows:—

1. **Short title**.—This Act may be called the Repealing and Amending (Second) Act, 2017.

2. Repeal of certain enactments.—The enactments specified in the First Schedule are hereby repealed.

3. Amendment of certain enactments.—The enactments specified in the Second Schedule are hereby amended to the extent and in the manner mentioned in the fourth column thereof.

4. Savings.—The repeal by this Act of any enactment shall not affect any other enactment in which the repealed enactment has been applied, incorporated or referred to;

and this Act shall not affect the validity, invalidity, effect or consequences of anything already done or suffered, or any right, title, obligation or liability already acquired, accrued or incurred, or any remedy or proceeding in respect thereof, or any release or discharge of or from any debt, penalty, obligation, liability, claim or demand, or any indemnity already granted, or the proof of any past act or thing;

nor shall this Act affect any principle or rule of law, or established jurisdiction, form or course of pleading, practice or procedure, or existing usage, custom, privilege, restriction, exemption, office or appointment, notwithstanding that the same respectively may have been in any manner affirmed or recognised or derived by, in or from any enactment hereby repealed;

nor shall the repeal by this Act of any enactment revive or restore any jurisdiction, office, custom, liability, right, title, privilege, restriction, exemption, usage, practice, procedure or other matter or thing not now existing or in force.

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THE FIRST SCHEDULE
(*See* section 2)

REPEALS

Year	Act No.	Short title
1	2	3
		Central Acts
1850	XXI	The Caste Disabilities Removal Act, 1850.
1857	VII	The Madras Uncovenanted Officers Act, 1857.
1857	XXI	The Howrah Offences Act, 1857.
1859	XII	The Calcutta Pilots Act, 1859.
1862	III	The Government Seal Act, 1862.
1873	XVI	The North-Western Provinces Village and Road Police Act, 1873.
1875	XX	The Central Provinces Laws Act, 1875.
1876	XIX	The Dramatic Performances Act, 1876.
1879	XIV	The Hackney-carriage Act, 1879.
1879	XIX	The Raipur and Khattra Laws Act, 1879.
1881	XIII	The Fort William Act, 1881.
1882	XXI	The Madras Forest (Validation) Act, 1882.
1883	X	The Bikrama Singh's Estates Act, 1883.
1886	XXI	The Oudh Wasikas Act, 1886.
1888	III	The Police Act, 1888.
1888	VIII	The Indian Tolls Act, 1888.
1893	II	The Porahat Estate Act, 1893.
1895	XV	The Government Grants Act, 1895.
1897	VIII	The Reformatory Schools Act, 1897.
1911	X	The Prevention of Seditious Meetings Act, 1911.
1912	VII	The Bengal, Bihar and Orissa and Assam Laws Act, 1912.
1917	XXV	The Sir Currimbhoy Ebrahim Baronetcy (Amendment) Act, 1917.
1921	XVII	The Cattle-trespass (Amendment) Act, 1921.
1931	XX	The Sheriff of Calcutta (Powers of Custody) Act, 1931.

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Year	Act No.	Short title
1	2	3
1932	XI	The Public Suits Validation Act, 1932.
1932	XXIV	The Bengal Suppression of Terrorist Outrages (Supplementary) Act, 1932.
1938	XX	The Criminal Law Amendment Act, 1938.
1941	IV	The Berar Laws Act, 1941.
1942	XVIII	The Weekly Holidays Act, 1942.
1943	XXIII	The War Injuries (Compensation Insurance) Act, 1943.
1947	XVI	The Trading with the Enemy (Continuance of Emergency Provisions) Act, 1947.
1948	26	The Junagadh Administration (Property) Act, 1948.
1949	51	The Requisitioned Land (Apportionment of Compensation) Act, 1949.
1949	61	The Professions Tax Limitation (Amendment and Validation) Act, 1949.
1950	IV	The Preventive Detention Act, 1950.
1950	L	The Preventive Detention (Amendment) Act, 1950.
1950	67	The Cooch-Behar (Assimilation of Laws) Act, 1950.
1951	3	The Part B States (Laws) Act, 1951.
1951	IV	The Preventive Detention (Amendment) Act, 1951.
1951	51	The Railway Companies (Emergency Provisions) Act, 1951.
1951	66	The Part C States (Miscellaneous Laws) Repealing Act, 1951.
1951	70	The Displaced Persons (Debts Adjustment) Act, 1951.
1952	1	The Part B States Marriages Validating Act, 1952.
1952	XXXIV	The Preventive Detention (Amendment) Act, 1952.
1952	LXI	The Preventive Detention (Second Amendment) Act, 1952.
1954	4	The Abducted Persons (Recovery and Restoration) Amendment Act, 1954.
1954	7	The Government of Part C States (Amendment) Act, 1954.
1954	15	The Transfer of Evacuee Deposits Act, 1954.
1954	20	The Absorbed Areas (Laws) Act, 1954.
1954	36	The Chandernagore (Merger) Act, 1954.
1954	51	The Preventive Detention (Amendment) Act, 1954.

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Year	Act No.	Short title
1	2	3
1955	19	The Commanders-in-Chief (Change in Designation) Act, 1955.
1955	30	The Abducted Persons (Recovery and Restoration) Continuance Act, 1955.
1956	4	The Bar Councils (Validation of State Laws) Act, 1956.
1956	50	The Indian Cotton Cess (Amendment) Act, 1956.
1956	65	The Abducted Persons (Recovery and Restoration) Continuance Act, 1956.
1956	88	The Representation of the People (Miscellaneous Provisions) Act, 1956.
1956	97	The Delhi Tenants (Temporary Protection) Act, 1956.
1957	32	The Forward Contracts (Regulation) Amendment Act, 1957.
1957	37	The Legislative Councils Act, 1957.
1957	54	The Preventive Detention (Continuance) Act, 1957.
1959	24	The Pharmacy (Amendment) Act, 1959.
1960	31	The Tripura Municipal Law (Repeal) Act, 1960.
1960	47	The Bilaspur Commercial Corporation (Repeal) Act, 1960.
1960	48	The Mahendra Pratab Singh Estates (Repeal) Act, 1960.
1960	53	The Tripura Excise Law (Repeal) Act, 1960.
1962	62	The Emergency Risks (Goods) Insurance Act, 1962.
1962	63	The Emergency Risks (Factories) Insurance Act, 1962.
1963	29	The Institutes of Technology (Amendment) Act, 1963.
1963	56	The Delhi Development (Amendment) Act, 1963.
1964	23	The Delhi (Delegation of Powers) Act, 1964.
1965	50	The Goa, Daman and Diu (Absorbed Employees) Act, 1965.
1967	16	The Anti-Corruption Laws (Amendment) Act, 1967.
1969	41	The International Monetary Fund and Bank (Amendment) Act, 1969.
1971	65	The Asian Refractories Limited (Acquisition of Undertaking) Act, 1971.
1971	68	The Uttar Pradesh Cantonments (Control of Rent and Eviction) (Repeal) Act, 1971.
1972	36	The Coking Coal Mines (Nationalisation) Act, 1972.
1973	26	The Coal Mines (Nationalisation) Act, 1973.
1975	19	The All-India Services Regulations (Indemnity) Act, 1975.

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Year	Act No.	Short title
1	2	3
1976	22	The Assam Sillimanite Limited (Acquisition and Transfer of Refractory Plant) Act, 1976.
1976	28	The Parliamentary Proceedings (Protection of Publication) Repeal Act, 1976.
1976	76	The National Library of India Act, 1976.
1976	89	The Indian Iron and Steel Company (Acquisition of Shares) Act, 1976.
1976	96	The Braithwaite and Company (India) Limited (Acquisition and Transfer of Undertakings) Act, 1976.
1977	16	The Disputed Elections (Prime Minister and Speaker) Act, 1977.
1977	41	The Smith, Stainstreet and Company Limited (Acquisition and Transfer of Undertakings) Act, 1977.
1977	42	The Gresham and Craven of India (Private) Limited (Acquisition and Transfer of Undertakings) Act, 1977.
1978	13	The Hindustan Tractors Limited (Acquisition and Transfer of Undertakings) Act, 1978.
1978	42	The Bolani Ores Limited (Acquisition of Shares) and Miscellaneous Provisions Act, 1978.
1979	12	The Punjab Excise (Delhi Amendment) Act, 1979.
1980	58	The Bengal Chemical and Pharmaceutical Works Limited (Acquisition and Transfer of Undertakings) Act, 1980.
1983	35	The Dangerous Machines (Regulation) Act, 1983.
1984	39	The Punjab Municipal (New Delhi Amendment) Act, 1984.
1984	43	The Aluminium Corporation of India Limited (Acquisition and Transfer of Aluminium Undertaking) Act, 1984.
1984	57	The Bengal Immunity Company Limited (Acquisition and Transfer of Undertakings) Act, 1984.
1985	80	The Customs (Amendment) Act, 1985.
1987	36	The Brentford Electric (India) Limited (Acquisition and Transfer of Undertakings) Act, 1987.
1993	24	The National Thermal Power Corporation Limited, the National Hydroelectric Power Corporation Limited and the North-Eastern Electric Power Corporation Limited(Acquisition and Transfer of Power Transmission Systems) Act, 1993.
1994	56	The Neyveli Lignite Corporation Limited (Acquisition and Transfer of Power Transmission System) Act, 1994.
1999	6	The Delhi Development Authority (Validation of Disciplinary Powers) Act, 1998.
1999	8	The Customs (Amendment) Act, 1998.
1999	49	The Copyright (Amendment) Act, 1999.

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Year	Act No.	Short title
1	2	3
2000	20	The Direct-tax Laws (Miscellaneous) Repeal Act, 2000.
2000	48	The Forfeiture (Repeal) Act, 2000.
2001	33	The Influx from Pakistan (Control) Repealing (Repeal) Act, 2001.
2001	36	The Indian Universities (Repeal) Act, 2001.
2001	37	The Auroville (Emergency Provisions) Repeal Act, 2001.
2001	41	The Central Sales Tax (Amendment) Act, 2001.
2001	47	The Two-Member Constituencies (Abolition) and other Laws Repeal Act, 2001.
2002	57	The Mysore State Legislature (Delegation of Powers) Repeal Act, 2002.
2002	65	The Countess of Dufferin's Fund (Repeal) Act, 2002.
2002	66	The Prevention of Food Adulteration (Extension to Kohima and Mokokchung Districts) Repeal Act, 2002.
2002	70	The Refugee Relief Taxes (Abolition) Repeal Act, 2002.
2003	2	The Cable Television Networks (Regulation) Amendment Act, 2002.
2005	38	The Displaced Persons Claims and other Laws Repeal Act, 2005.
2005	44	The Immigration (Carriers' Liability) Amendment Act, 2005.
2006	3	The Central Sales Tax (Amendment) Act, 2005.
2006	18	The National Commission for Minority Educational Institutions (Amendment) Act, 2006.
2006	24	The Cess Laws (Repealing and Amending) Act, 2006.
2006	29	The Taxation Laws (Amendment) Act, 2006.
2006	32	The Spirituous Preparations (Inter-State Trade and Commerce) Control (Repeal) Act, 2006.
2006	46	The Produce Cess Laws (Abolition) Act, 2006.
2006	49	The Indian Rifles (Repeal) Act, 2006.
2007	24	The Mizoram University (Amendment) Act, 2007.
2007	39	The Competition (Amendment) Act, 2007.
2008	25	The Central Universities Laws (Amendment) Act, 2008.
2009	39	The Competition (Amendment) Act, 2009.

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Year	Act No.	Short title
1	2	3
2010	20	The National Commission for Minority Educational Institutions (Amendment) Act, 2010.
2010	33	The Jharkhand Panchayat Raj (Amendment) Act, 2010.
2012	27	The Copyright (Amendment) Act, 2012.
2012	31	The Central Educational Institutions (Reservation in Admission) Amendment Act, 2012.
		Ordinances made by the Governor-General
1941	VII	The War Injuries Ordinance, 1941.
1942	XX	The Collective Fines Ordinance, 1942.
1942	XLI	The Armed Forces (Special Powers) Ordinance, 1942.
1944	XXI	The Public Health (Emergency Provisions) Ordinance, 1944.
1945	XXIV	The War Gratuities (Income-tax Exemption) Ordinance, 1945.
1945	XXX	The Secunderabad Marriage Validating Ordinance, 1945.
1946	II	The Bank Notes (Declaration of Holdings) Ordinance, 1946.
1946	VI	The Criminal Law Amendment Ordinance, 1946.
1946	X	The Termination of War (Definition) Ordinance, 1946.

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THE SECOND SCHEDULE
(*See* section 3)

AMENDMENTS

Year	Act No.	Short title	Amendments
1	2	3	4
1951	69	The Plantations Labour Act, 1951	In section 43, sub-section (*4*) shall be omitted.
2016	2	The Juvenile Justice (Care and Protection of Children) Act, 2015	In section 69, in sub-section (*2*), for the words, brackets and letters "mentioned at (*d*) to (*f*)", the words, brackets, letters and figure "mentioned at clauses (*d*) to (*f*) of sub-section (*1*)" shall be substituted.
2016	49	The Rights of Persons with Disabilities Act, 2016	In section 76, after the word, brackets and letter, "clause (*b*)", the words, brackets and figure "of sub-section (*1*)" shall be inserted

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